



CHAPTER 7.

An Act to empower the Minister of Labour and National Service, during the present emergency, to modify or suspend the operation of any of the provisions of the Trade Boards Acts, 1909 and 1918, and the Road Haulage Wages Act, 1938, and to make provision with respect to any of the matters to which the said provisions relate; and to make a consequential amendment of the Holidays with Pay Act, 1938.

[20th February 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of adapting the statutory system of trade boards to the conditions prevailing in time of war, the Minister of Labour and National Service may by regulations modify or suspend the operation of any of the provisions of the Trade Boards Acts, 1909 and 1918, to such extent as he considers expedient for the purpose aforesaid, and make such provision with respect to any of the matters to which those provisions relate as he considers expedient for that purpose :

Power of Minister of Labour and National Service to make regulations adapting statutory system of trade boards to war time conditions.

Provided that no such regulations shall—

- (a) create any new offence or increase the penalty for any offence;

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9 Edw. 7.
c. 22.

- (b) affect subsections (1) to (3) of section eleven of the Trade Boards Act, 1909 (which contain certain requirements as to the composition of trade boards);
- (c) authorise the fixing, cancellation or variation of minimum rates of wages under the Trade Boards Acts, 1909 and 1918, otherwise than by a trade board; or
- (d) empower a trade board to fix, cancel or vary any minimum rate of wages, not being a special minimum piece-rate, without giving notice of their proposal to do so, allowing a period of at least fourteen days for any objection thereto to be lodged with them, and considering any such objection duly lodged with them within that period.

8 & 9 Geo. 5.
c. 32.
56 & 57 Vict.
c. 66.

(2) Section nineteen of the Trade Boards Act, 1909, (which requires regulations under that Act to be laid before Parliament) and section twelve of the Trade Boards Act, 1918, (which provides that section one of the Rules Publication Act, 1893, shall not apply to certain regulations made under the said Act of 1909) shall apply to regulations under this section as they apply to the regulations mentioned in the said sections nineteen and twelve respectively.

Power of
Minister of
Labour and
National
Service
to make
regulations
adapting
provisions
as to road
haulage
workers'
remunera-
tion to
wartime
conditions.
1 & 2 Geo. 6.
c. 44.

2.—(1) For the purpose of adapting the statutory provisions as to the remuneration of workers employed upon road haulage work to the conditions prevailing in time of war, the Minister of Labour and National Service may, after consulting with the Central Board and with such organisations of employers and workers as he thinks proper, by regulations modify or suspend the operation of any of the provisions of the Road Haulage Wages Act, 1938, to such extent as he considers expedient for the purpose aforesaid, and make such provision with respect to any of the matters to which those provisions relate as he considers expedient for that purpose :

Provided that nothing in this subsection shall empower the Minister—

- (a) to create any new offence or increase the penalty for any offence;

- (b) to make regulations affecting the proviso to subsection (2) of section one of the said Act (which excludes certain work from the operation of Part I thereof) or the proviso to subsection (2) of section four of the said Act (which excludes certain work from the operation of Part II thereof);
- (c) to fix or alter the remuneration of workers employed upon road haulage work except upon a proposal of the Central Board;
- (d) to make regulations affecting the Third Schedule to the said Act (which defines the expressions "road haulage worker" and "road haulage work") except after giving notice of his proposal so to do, allowing a period of at least fourteen days for any objection thereto to be lodged with him, and considering any such objections duly lodged with him within that period.

(2) Section fourteen of the Road Haulage Wages Act, 1938 (which provides for the laying of regulations made thereunder before Parliament) shall apply to regulations made under this section as it applies to regulations made under that Act, but notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under this section shall be deemed not to be, or to contain, statutory rules to which the said section one applies.

(3) In this section the expression "the Central Board" has the same meaning as in the Road Haulage Wages Act, 1938.

3. Any reference in subsection (1) of section three of the Holidays with Pay Act, 1938, to any provisions of the Trade Boards Acts, 1909 and 1918, or of the Road Haulage Wages Act, 1938, shall, in relation to any provision which has been modified by regulations made under this Act, be construed as a reference to that provision as so modified, and, in relation to any provision which has been suspended by any such regulations, be construed as a reference to any provision made by those regulations with respect

Construction of ss. (1) of s. 3 of Holidays with Pay Act, 1938. 1 & 2 Geo. 6. c. 70.

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Haulage Wages (Emergency Provisions) Act, 1940.*

to the matters to which the provision in question relates.

Short title,
extent and
duration of
Act.

4.—(1) This Act may be cited as the Trade Boards and Road Haulage Wages (Emergency Provisions) Act, 1940.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall continue in force until such date as His Majesty may by Order in Council declare to be the date on which the emergency that was the occasion of the passing of this Act came to an end, and shall then expire except as respects things previously done or omitted to be done.

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